

ELIZABETH II



1975 CHAPTER ii

An Act to confirm a Provisional Order made by the Secretary of State for the Environment under the General Pier and Harbour Act 1861 relating to Fishguard and Goodwick Harbour. [20th March 1975]

WHEREAS a Provisional Order made by the Secretary 1861 c. 45.
of State for the Environment under the General Pier and
Harbour Act 1861 is not of any validity or force whatever
until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made
by the Secretary of State for the Environment under the said
Act as set out in the schedule to this Act be confirmed by Act of
Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Order as set out, as amended, in the schedule to this Confirmation
Act shall be and the same is hereby confirmed and all the pro- of Order in
visions thereof in manner and form as they are set out in the schedule.
said schedule shall from and after the passing of this Act have
full validity and force.

2. This Act may be cited as the Pier and Harbour Order Short title.
(Fishguard and Goodwick Harbour) Confirmation Act 1975.

SCHEDULE

FISHGUARD AND GOODWICK HARBOUR

Provisional Order to authorise the Preseli District Council to levy certain dues and charges in respect of the Fishguard Harbour; to modify the application of certain provisions of the Harbours Clauses Act 1847; and for other purposes.

- Short title. 1. This Order may be cited as the Fishguard and Goodwick Harbour Order 1974.
- Commencement of Order. 2. This Order shall come into operation upon the day when the Act confirming this Order is passed.
- Interpretation. 3.—(1) In this Order, except where the context otherwise requires, words and expressions to which by the enactments incorporated therewith or applied thereto respectively meanings are assigned have the same meanings, and—
- “the Council” means the District Council of Preseli;
- “enactment” means any Act, whether public, general or local, and any order or other instrument made thereunder and any provision in any Act or in any such order or instrument;
- “the harbour” means the area the limits whereof are delineated in red on the signed plan;
- 1847 c. 27. “the Harbours Clauses Act 1847” means the Harbours, Docks, and Piers Clauses Act 1847;
- 1968 c. 59. “hovercraft” has the meaning assigned thereto by section 4 of the Hovercraft Act 1968;
- “port facilities” means services and facilities for or in connection with the berthing, moving or dry-docking of vessels, the loading or unloading of goods or the embarking or disembarking of passengers in or from vessels, the lighterage, sorting, weighing, warehousing or handling of goods, and the movement of goods and passengers;
- “the signed plan” means the plan prepared in quadruplicate, signed by an assistant Secretary in the Department of the Environment and marked “Plan referred to in the Fishguard and Goodwick Harbour Order 1974”, one copy of which has been deposited at the office of the Secretary of State, one copy at the office of the Secretary of State for Trade, one copy at the office of the clerk of the Dyfed County Council and one copy at the office of the Council;
- “vessel” has the meaning assigned thereto by subsection (2) of this section.
- (2) In this Order and the enactments incorporated therewith “vessel” means every description of vessel, however propelled or moved, and includes anything constructed or used to carry persons or goods by water, and without prejudice to the generality of the foregoing includes a hovercraft on, in or over the water.
- (3) Any reference in this Order to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied, by or by virtue of any subsequent enactment including this Order.

4. The Council shall be the undertakers for carrying this Order into execution.

5.—(1) The Council shall have the powers of improvement, maintenance and management of the harbour conferred (by virtue of section 19 of the General Pier and Harbour Act 1861, Amendment Act 1862) by the incorporation with this Order of the provisions of the Harbours Clauses Act 1847: Incorporation
of Harbours
Clauses Act.
1862 c. 19.

Provided that sections 1, 6 to 13, 16 to 23, 25 to 27, 29 to 31, 42, 50, 84 to 90, 97 and 98 of the said Act of 1847 shall not be so incorporated.

(2) In construing the provisions of the said Act of 1847 as incorporated with this Order pursuant to section 19 of the General Pier and Harbour Act 1861, Amendment Act 1862—

- (i) the expression “the harbour, dock, or pier” shall mean the harbour, and the expression “the undertakers” shall mean the Council;
- (ii) section 15 shall be read and have effect as if the words from “shall forfeit” to the end of the section were deleted and there were substituted therefor the words “shall be liable on summary conviction to a fine not exceeding £100”;
- (iii) section 63 shall be read and have effect as if for the words “five pounds, and a further sum of twenty shillings for every hour that such vessel shall remain within the limits aforesaid, after a reasonable time for removing the same has expired after such requisition” there were substituted the words “fifty pounds”;
- (iv) section 69 shall be read and have effect as if the words “Provided that such sum shall not exceed £100 in total” were added thereto.

(3) As respects byelaws made under section 83 of the said Act of 1847 as so incorporated, the confirming authority for the purposes of section 236 of the Local Government Act 1972 shall be the Secretary of State. 1972 c. 70.

6.—(1) The Council shall have, in addition to the power to charge ship, passenger and goods dues conferred on a harbour authority by section 26(2) of the Harbours Act 1964, the power to demand, take and recover in respect of any floating manufactured article (not being a ship within the meaning of the said Act of 1964) entering, using or leaving the harbour such reasonable dues as they think fit. Harbour
charges.
1964 c. 40.

(2) The Council may demand, take and recover such reasonable charges or other consideration for port facilities or services in connection with the harbour as they may from time to time determine.

(3) Dues and charges levied pursuant to this section shall be payable subject to such conditions as the Council may from time to time specify in their published list of charges.

7.—(1) The several dues and charges which the Council are for the time being authorised to demand, take and recover in respect of vessels and goods under any enactment shall be payable before the removal from the harbour of any vessel or goods in respect of which they are payable, and may be demanded, taken and recovered by Payment
of charges.

*Pier and Harbour Order (Fishguard
and Goodwick Harbour) Confirmation Act 1975*

such persons, at such places, at such times and under such regulations as the Council may from time to time appoint:

Provided that this subsection shall not have effect as respects vessels kept permanently at the harbour, or as respects any vessel of not more than 100 tons gross used wholly or mainly for recreation or for the carriage of passengers for reward.

1952 c. 44.

(2) An officer as defined in the Customs and Excise Act 1952 may refuse clearance of any vessel if he is satisfied that any dues or charges payable to the Council in respect of that vessel or any goods therein have not been paid or satisfactorily secured.

(3) Dues and charges payable to the Council shall be payable by the owner of any vessel or goods in relation to which they are payable.

(4) Where dues or charges payable to the Council may be recovered by them for more than one person, the persons from whom they may be recovered shall be jointly and severally liable.

Payment of
charges on
warehoused
goods.

8. The owner or person having the charge of any goods warehoused, placed, stored or yarded in a warehouse, transit shed or area, store or yard of the Council shall, before the removal of those goods from the warehouse, transit shed or area, store or yard and at such date or dates as shall be fixed by the Council, pay such charges as shall be then due and payable on those goods.

Recovery
of charges.

9. In addition to any other remedy given by this Order and by the Harbours Clauses Act 1847 as incorporated with this Order, and whether the demand required by section 44 of that Act has been made or not, the Council may recover any dues, rates, rents or other charges payable to them as a debt in any court of competent jurisdiction.

Costs of
Order.

10. The costs, charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise in relation thereto shall be paid by the Council.

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